

Stereo H.C.J.D.A.38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN.
JUDICIAL DEPARTMENT
Case No. Civil Revision No.300 of 2017

Hadeed Dawood.
Vs.
Muhammad Ramzan.

JUDGMENT

Date of hearing:	13.09.2021.
Petitioner by	Ch. Khawar Siddique Sahi, Advocate for the Petitioner.
Respondent by	Nemo.

Muhammad Raza Qureshi, J. Through this Civil Revision the Petitioner has challenged the Order dated 03.01.2017 passed by learned District and Sessions Judge, Khanewal whereby the suit titled “*Hadeed Dawood vs. Muhammad Ramzan*” for return of cheque was withdrawn from the Court of learned Civil Judge Jahanian and was entrusted to the Court of learned Additional District and Sessions Judge, Khanewal where the suit titled “*Muhammad Ramzan vs. Hadeed Dawood*” was pending determination under Order XXXVII of Code of Civil Procedure, 1908 (herein after as “**CPC**”).

2. Pursuant to Order dated 15.06.2017, the Respondent, Muhammad Ramzan was directed to be proceeded *ex parte*.

3. Learned counsel for the Petitioner submits that Impugned Order suffers from material irregularity as the learned District Judge had no jurisdiction to transfer and

consolidate the both Suits falling under two different jurisdictions.

4. Generally the powers exercised by learned District Judge under section 24 of CPC is rarely interfered in exercise of revisional jurisdiction under section 115 of CPC but the facts and circumstances in the instant case necessitated that the jurisdiction exercised by learned Court below be checked by this Court in exercise of its supervisory jurisdiction.

5. It appears from the record that the suit titled "*Muhammad Ramzan vs. Hadeed Dawood*" was filed for recovery of Rs.250,000/- on the basis of negotiable instruments namely cheque bearing No.45018897 dated 10.09.2015 under provisions of Order XXXVII CPC. The said Suit was filed on 25.04.2016 before the learned District Judge, Khanewal. Whereas, the Suit titled "*Hadeed Dawood vs. Muhammad Ramzan*" seeking return of subject matter cheque was filed under section 9 of CPC before the learned Civil Judge, Ist Class, Jahanian. This Civil Suit was subsequent in time and was filed on 14.06.2016.

6. It is imperative that while ordering stay of subsequent proceedings or consolidation of Suits, the Court must keep in mind whether the Suits are pending before the competent Courts of same jurisdiction. A Suit under Order XXXVII CPC based on a negotiable instrument is summary in nature wherein right to defend such Suit can only be granted if the Defendant exhibits grounds for grant of Application for leave to defend as the leave is refused or granted subject to conditions when Court finds that the defense is illusory or sham, or liability and execution of negotiable instrument is admitted. In cases where allegation of fraud, forgery or fabrication of negotiable instrument is pleaded it makes a

plausible defense and the Applicant/Defendant is granted to leave to defend the Suit.

7. Conversely if the Application for leave to defend fails to disclose a plausible defense the same is mandatorily liable to be rejected and the Suit filed by the Plaintiff is liable to be decided in accordance with the procedure applicable under the provision of XXXVII CPC. In a Suit before the Court of plenary jurisdiction under section 9 CPC is contested by the Defendant as of right and involve a detailed trial procedure, therefore, the Suits filed under two separate jurisdictions are to be conducted and evaluated as per their own respective procedures.

8. Since the nature, jurisdiction and procedure of both the Courts below was distinct, therefore, the learned District Court Khanewal could not have ordered transfer or consolidation of both Suits. Reliance in this regard is placed on **2009 CLC 308** titled "*A.B.L vs. Khalid Mahmood*" wherein the learned Division Bench of this Court in similar circumstances set aside the Order of similar nature impugned herein.

9. This Court in exercise of its supervisory jurisdiction can check the proceedings if the same suffers from material illegality or irregularity as section 115 CPC confers jurisdiction upon the High Court to set right jurisdictional, legal or procedural errors committed by subordinate Courts. Reliance in this regard is placed on the case **1992 SCMR 2334** titled "*Muhammad Yousaf and 3 others vs. Khan Bahadur through Legal Heirs*".

10. Consequently, the Impugned Order dated 03.01.2017 transferring and consolidating two Suits under distinct jurisdiction is set aside and both the Courts of independent jurisdictions are directed to proceed with the respective Suits

pending before them according to procedure laid down by the law.

11. Office is directed to send a copy of this Judgment to the learned District and Sessions Judge, Khanewal who shall ensure that the Suits proceedings are fixed before the Courts of respective jurisdiction and proceed with the trials as expeditiously as possible.

MUHAMMAD RAZA QURESHI
JUDGE

M. Afzal